

Court No. - 37

Case :- WRIT - C No. - 11502 of 2014

Petitioner :- M/S Panem Castings Pvt. Ltd. Thru' Auth. Sig. S.B. Bajpai

Respondent :- U.P. Power Corporation Ltd. Thru' Chairman & 3 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Vineet Saran,J.

Hon'ble Attau Rahman Masoodi,J.

Sri Rajendra Kumar Mishra has put in appearance on behalf of the respondents. On his request, put up as a fresh case on 25.2.2014 so as to enable him to obtain instructions. Sri Mishra, learned counsel for the respondents, has made a statement that till 25.2.2014 the power connection of the petitioner shall not be disconnected.

Order Date :- 21.2.2014

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(Attau Rahman Masoodi, J.) (Vineet Saran, J.)

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Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Vineet Saran,J.

Hon'ble Attau Rahman Masoodi,J.

The petitioner is a heavy consumer of electricity. He is aggrieved by the retrospective implementation of revised tariff with effect from 1.10.2012. Brief facts of the case are that new tariff was promulgated by U.P. Electricity Regulatory Commission on 19.10.2012, which was published on 23.10.2012. A notification was issued by the U.P. Power Corporation on 25.10.2012 bringing the said tariff into effect retrospectively with effect from 1.10.2012. According to the petitioner, as per clause 3.8 of the U.P. Electricity Supply Code , 2005, new tariff comes into force only after seven days from the date of publication of revised tariff, which was made on 23.10.2012, therefore, new tariff would come into force on 1.11.2012. Learned counsel for the petitioner submits that application of revised tariff retrospectively with effect from 1.10.2012 is against the provisions of U.P. Electricity Supply Code and the Electricity Act.

In our view , the matter requires consideration.

Time was granted to Sri R.K. Mishra, learned counsel for the respondent-corporation to obtain instructions. He has stated today that 15 days may be granted to him for filing counter affidavit. The petitioner will have 15 days time thereafter to file rejoinder affidavit.

List immediately thereafter.

Considering the facts and circumstances of the case and keeping in view the submissions made by the learned counsel for the petitioner, orders dated 3.2.2014 and 31.1.2014 for demand of difference amount in the electricity charges on the basis of revised tariff with effect from 1.10.2012 to 1.11.2012 shall remain stayed and the respondents shall not disconnect the electricity connection of the petitioner on account of non-payment of the disputed amount provided the petitioner continues to pay the current electricity bills regularly .

The name of Sri Rajendra Kumar Mishra will be shown as the learned counsel for the respondent -corporation when the case is listed next.

Order Date :- 25.2.2014

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(Attau Rahman Masoodi J.) (Vineet Saran J.)

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Respondent :- U.P. Power Corporation Ltd. Thru' Chairman & 3 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Mahboob Ahmad, Rajendra Kumar Misra

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

We have heard Sri Mayank Agrawal, learned counsel appearing for the petitioner and Sri Priyam Dutt Tripathi holding brief of Sri Nripendra Mishra, learned counsel appearing for the respondents.

This petition has been filed challenging the impugned demand notice dated 03.02.2014 issued by the respondent no.3 and order dated 31.01.2014 passed by respondent no.4.

Learned counsel for the petitioner states that the controversy with respect to the revised rates of tariff with retrospective effect was considered in a bunch of writ petitions leading writ petition being Writ Petition No.13514 of 2014 (M/s Shokumbhari Pulp & Paper Mills Ltd. Vs. U.P. Power Corporation Ltd. & 3 others) which was finally decided by a Division Bench of this Court by the judgement dated 01.04.2014, which is reported in **2014 (4) ADJ 225**. He states that the controversy in this writ petition is identical and same, hence prays for similar order.

We have considered the submission of learned counsel for the parties and gone through the record, the controversy with respect to the applicability of the revised tariff rates as was finally determined by the U.P. Electricity Regulatory Commission on 19.10.2012 and published by the U.P. Power Corporation on 23.10.2012 duly notified on 25.10.2012 is also the subject matter of this writ petition.

Learned counsel for the respondents does not dispute the fact that the controversy involved in this writ petition is squarely covered by the Division Bench judgement in the case of M/s Shokumbhari Pulp & Paper Mills Ltd. (supra).

Under such circumstances, this writ petition also stands allowed on the same terms and conditions of the judgement dated 01.04.2014 passed in Writ Petition No.13514 of 2014 (M/s Shokumbhari Pulp & Paper Mills Ltd. Vs. U.P. Power Corporation Ltd. & 3 others) and the impugned demand notice dated 03.02.2014 issued by the respondent no.3 is quashed.

No order is passed as to costs.

Order Date :- 14.7.2014

Anil